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**Recording Requested By and
When Recorded Return to:**

Plum Bayou Solar LLC
c/o Orion Renewable Energy Group LLC
155 Grand Avenue, Suite 706
Oakland, CA 94612
Attn: General Counsel
(510) 267-8921

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JEFFERSON COUNTY AR
BARBARA COLLINS, CIRCUIT CLERK
RECORDING FEE 60.00

#AR-WBF1-1230

Jefferson County, Arkansas

MEMORANDUM OF SOLAR LEASE AGREEMENT

THIS MEMORANDUM OF SOLAR LEASE AGREEMENT (this "Memorandum") is made, dated and effective as of November 17, 2021 (the "Effective Date"), between **BERDIA TOLIVER MONSON** ("Owner"), and **Plum Bayou Solar LLC, a Delaware limited liability company** ("Lessee").

1. Lease Agreement. Owner and Lessee are parties to that certain Lease Agreement (the "Agreement") dated concurrently herewith. Under the Agreement, Owner hereby leases to Lessee the real property of Owner consisting of approximately 109.01 acres located in Jefferson County, Arkansas, and legally described on Exhibit A attached hereto and incorporated herein by reference. The Agreement includes the right to access and utilize all radiant energy emitted from the sun upon, over and across the real property ("Solar Energy"), and any easements, rights-of-way, and other rights and benefits relating or appurtenant to such real property (collectively, the "Property").

2. Addresses. All notices, requests and communications required or permitted by the Agreement shall be addressed as follows:

If to Owner: BERDIA TOLIVER MONSON
5709 EARL CHADICK RD
SHERRILL, AR 72152

If to Lessee: Plum Bayou Solar LLC
c/o Orion Renewable Energy Group LLC
155 Grand Avenue, Suite 706
Oakland, CA 94612
Attn: General Counsel

3. Purposes. Lessee shall have the exclusive right to use the Property and the unobstructed flow of Solar Energy upon, over and across the Property for the purposes of constructing and operating a solar photovoltaic electricity generating facility ("Solar Energy Purposes") and to derive all profits therefrom, and not for any other purpose. For purposes of the Agreement, Solar Energy Purposes includes the right to convert the Solar Energy into electrical energy and to collect and transmit the electrical energy so converted, together with any and all

activities related thereto, including (a) determining the feasibility of Solar Energy conversion and power generation on the Property, including studies of the Solar Energy emitted upon, over and across the Property (through the installation of Solar Energy measurement equipment or otherwise) and other meteorological, archeological and environmental studies, land surveys and due diligence activities; and (b) constructing, installing, using, replacing, relocating and removing from time to time, and maintaining, refurbishing and operating, Solar Energy collection and electrical generating equipment utilizing photovoltaic technology (collectively referred to herein as "Solar Generating Equipment"), overhead and underground electrical transmission, distribution and communications lines, electric inverters, transformers, breakers and switches, energy storage facilities, telecommunications equipment, roads, gates, and fences, vegetative buffers planted as screening near fences, meteorological stations and Solar Energy measurement equipment, control or operations and maintenance buildings, maintenance yards and temporary laydown areas, and related facilities, equipment and improvements (the Solar Generating Equipment together with all of the foregoing, collectively, "Solar Facilities") on the Property. Solar Facilities on the Property may be operated in conjunction with Solar Facilities installed on other nearby properties that are part of the same solar energy project (collectively, the "Project"). Lessee and its consultants may enter the Property, upon reasonable advance notice, to do work related to development of Solar Facilities. Subject to Owner's rights to use the Property in any manner consistent with Section 8.2 of the Agreement, Lessee shall have the right, after commencement of construction of Solar Facilities on the Property, to control and restrict access onto and over the Property and exclude others (other than any parties with preexisting easement rights) as it deems necessary or appropriate for safety and security reasons.

4. Term. The Agreement shall be for a term that expires thirty-seven (37) years after the Effective Date unless sooner terminated or unless extended pursuant to and in accordance with the Agreement.

5. Ownership. Owner shall have no ownership or other interest in any Solar Facilities installed on the Property, or any profits derived therefrom, and Lessee may remove any or all Solar Facilities at any time.

6. Construction Easement. Owner grants Lessee an easement in, over and across the Property ("Construction Easement") which may be utilized on a temporary basis for access, construction laydown or other purposes to facilitate the construction, maintenance or repair of Solar Facilities on the Property during any time that Lessee is conducting such work. Lessee will use commercially reasonable efforts to minimize surface disturbance on the portion of the Property lying outside of the Project Site during construction. The Construction Easement shall run with the Property, and shall inure to the benefit of and be binding upon Owner and Lessee and their respective transferees, successors and assigns, and all persons claiming under them. The Construction Easement shall expire upon the termination or expiration of the Agreement.

7. Access Easement. Owner grants to Lessee the right of ingress to and egress from Solar Facilities (whether located on the Property, on adjacent property or elsewhere) over and across the Property by means of roads and lanes thereon if existing, or otherwise by such route or routes as Lessee may construct from time to time ("Access Easement"). The Access Easement shall include the right to improve existing roads and lanes, shall run with the Property, and shall

inure to the benefit of and be binding upon Owner and Lessee and their respective transferees, successors and assigns, and all persons claiming under them. The Access Easement shall expire upon the termination or expiration of the Agreement.

8. Transmission Easement. Owner grants to Lessee an exclusive easement ("Transmission Easement") in, on, along, over, across, above and under the Property for the right to erect, construct, reconstruct, replace, relocate, remove, maintain and use the following from time to time in connection with Solar Energy Purposes, whether carried out on the Property or elsewhere: (a) a line or lines of poles or towers, together with such wires and cables as from time to time are suspended therefrom, and/or underground wires and cables, for the transmission of electrical energy and/or for communication purposes, and all necessary and proper foundations, footings, crossarms and other appliances and fixtures for use in connection with said towers, wires and cables on, along and in the Property; and (b) one or more substations or interconnection or switching facilities from which Lessee or others that generate energy may interconnect to a utility transmission system or the transmission system of another purchaser of electrical energy, together with the appropriate rights-of-way, on, along and in the Property. The Transmission Easement shall run with the Property and shall inure to the benefit of and be binding upon Owner and Lessee and their respective transferees, successors and assigns, and all persons claiming under them. The Transmission Easement shall expire upon termination or expiration of the term of the Agreement. Each Transmission Easement shall not exceed 150 feet in width without the prior written consent of Owner.

9. Assignees. Lessee and any Assignee (as hereinafter defined) have the right, without obtaining the consent of Owner, to do any of the following with respect to all or any portion of its right, title and/or interest in and to the Agreement, the Lease, the Property, any Project Site and/or the Solar Facilities: (a) grant subleases, separate easements, co-easements, subeasements, licenses or similar rights (however denominated) to one or more Assignees, (b) collaterally assign, mortgage, encumber, pledge or transfer all or any portion of its right, title or interest therein to one or more parties providing financing to Lessee, and/or (c) sell, lease, assign, transfer or otherwise convey all or any portion of its right, title or interest therein to one or more Assignees. For these purposes, an "Assignee" is any of the following: (i) any one or more parties involved in the development, financing or refinancing of any Solar Facilities, including, without limitation, any lender to or investor in, or purchaser or Lessee of, Solar Facilities; (ii) any one or more parties involved in financing or refinancing the development of the Project or any Solar Facilities, or any purchaser or owner of Solar Facilities; (iii) a corporation, partnership or limited liability company now existing or hereafter organized (including Lessee) in which Lessee or any of its owners, or any affiliate or partner of either, owns (directly or indirectly) a controlling interest at the time of assignment; (iv) a partnership now existing or hereafter organized, a general partner of which is such a corporation, partnership or limited liability company; or (v) a corporation, partnership, limited liability company, or other entity that acquires all or substantially all of Lessee's business, assets or capital stock, directly or indirectly, by purchase, merger, consolidation or other means if either (A) the Assignee or its affiliate has a net worth of at least 50 Million Dollars (\$50,000,000) and has a comparable level of experience in wind and/or solar farm development and operation as Orion Renewable Energy Group LLC, or (B) the Assignee engages an experienced operator of the Solar Facilities that has a net worth of at least

50 Million Dollars (\$50,000,000), or (C) the Assignee is Entergy Arkansas, LLC or its affiliate, or other regulated utility that meets the financial requirements in (B).

10. Lender Protection. In the event that Lessee assigns, transfers, mortgages, hypothecates, encumbers or pledges any portion of its interest in Lessee, the Lease, the Agreement, the Project Site and/or the Solar Facilities to any Lender as security for or repayment of any indebtedness and of the performance of any obligation whether or not such obligation is related to any indebtedness (a "Lender's Lien"), then any Lender shall, for so long as the Lender's Lien is in existence and until the lien or encumbrance thereof has been extinguished, be entitled to the protections set forth in the Agreement.

11. Restrictive Covenant; No Interference. Lessee shall have the quiet use and enjoyment of the Property in accordance with the terms of the Agreement. Owner's activities and any grant of rights Owner makes to any person or entity, whether located on the Property or elsewhere, shall not, currently or prospectively, interfere with: the development, construction, installation, maintenance, or operation of Solar Facilities, whether located on the Property or elsewhere; access over the Property to such Solar Facilities; Lessee's rights granted hereunder to use the Property for any other Solar Energy Purposes; or the undertaking of any other activities permitted under the Agreement. Without limiting the generality of the foregoing, the activities of Owner shall not disturb or interfere with the unobstructed flow of Solar Energy upon, over and across the Property, whether by placing towers or antennas of any type, planting trees or constructing buildings or other structures or facilities, or by engaging in any other activity on the Property or elsewhere that might delay the installation of, disrupt, or otherwise cause a decrease in the output or efficiency of the Solar Facilities. The area of land to remain unobstructed by Owner will consist horizontally of the entire Property, and vertically all space located above the surface of the Property. If Lessee builds Solar Facilities on only a portion of the Property, Owner may use the rest of the Property in any manner that complies with the foregoing.

12. Setback Waiver. To the extent permitted by law, Owner hereby waives any setbacks or other restrictions on the location of any Solar Facilities to be installed on the Property or on adjacent properties, including but not limited to waiver of all property line setbacks, pursuant to state or county rules, regulations or ordinances (that is, Owner approves a reduction of each such setback to zero), and Owner shall cooperate with Lessee in providing documentation of such setback waivers and shall execute any documents reasonably requested by Lessee to evidence Owner's waiver of such setbacks.

13. Conflicts. In the event of any direct conflict between the Agreement and this Memorandum, the terms of the Agreement shall prevail. Nothing herein contained shall be deemed to amend, modify, alter or change any of the provisions contained in the Agreement.

14. Successors and Assigns. The Agreement and this Memorandum shall inure to the benefit of and be binding upon Owner and Lessee and, to the extent provided in any assignment or other permitted transfer, any Assignee, and their respective heirs, transferees, successors and assigns, and all persons claiming under them. In the event of any inaccuracy in Exhibit A attached hereto, Lessee may correct such inaccuracy in order to accomplish the intent of Lessee and Owner. The parties agree and intend that the provisions of the Agreement shall be

covenants running with the land and that they touch and concern the land because they determine how the parties will use the Property and its resources, including payment for those resources and use of the Property. The parties further agree and intend that any conveyance, assignment, sale or other transfer of all or a portion of either party's rights or interests covered by and permitted under the Agreement shall include and be subject thereto because the provisions of the Agreement are covenants that run with the land. As covenants running with the land, the parties intend that should either no longer share privity of estate with the other, its rights and obligations in the Agreement pass to the person or entity that shares privity of estate and assumes the role of Owner or Lessee. As a result, except as otherwise provided in the Agreement, any party who ceases to have privity of estate under the Agreement shall bear no liability or any obligation for the terms thereunder after the date on which privity ends *provided*, that any assignment by Lessee permitted under the Agreement shall release Lessee from the assigned liabilities only if the Assignee has accepted responsibility in writing for all terms and conditions of the Lease as provided in Section 9.2 of the Lease. The privity of contract between the current parties shall not change this result because the parties do not intend the use of identifiers like Owner or Lessee to bind those specific parties upon any transfer, conveyance, assignment, sale or other transfer covered by and permitted under the Agreement.

15. Counterparts. This Memorandum may be executed in multiple counterparts, no one of which need be executed by all parties hereto, each of which shall constitute an original. Counterparts thus executed shall together constitute one and the same instrument.

[Signatures on following page.]

IN WITNESS WHEREOF, AND INTENDING TO BE LEGALLY BOUND HEREBY,
the parties have duly executed this Memorandum the day and year first above written.

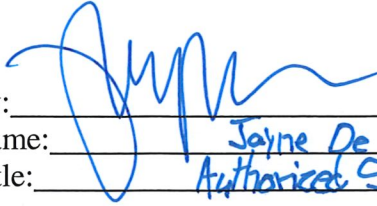
“OWNER”


Name: BERDIA TOLIVER MONSON

[Signatures continued on following page.]

“LESSEE”

**Plum Bayou Solar LLC,
a Delaware limited liability company**

By: 
Name: Jayne De Young
Title: Authorized Signatory

STATE OF ARKANSAS §
COUNTY OF Jefferson §

On this 4th day of November, 2021, before me Jimmy D. Dill, a Notary Public, duly commissioned, qualified and acting, within and for said County and State, appeared the within named _____ BERDIA TOLIVER MONSON to me personally well known (or satisfactorily proven to be such person), who stated and acknowledged that [he/she/they] had so signed, executed, and delivered said foregoing instrument for the consideration, uses, and purposes therein mentioned and set forth.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal this 4th day of November, 2021.



Jimmy D. Dill
Notary Public
Printed Name: Jimmy D. Dill
My Commission Expires: 7-8-2030

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA

§

§

COUNTY OF ALAMEDA

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On November 17, 2021, before me, Max Rosen, a Notary Public, personally appeared Jayne De Young, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

[Notary Stamp/Seal]



Notary Public in and for the State of California

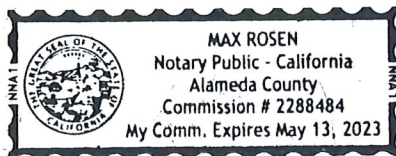


EXHIBIT A

Description of Property

ALL THAT CERTAIN real estate lying and being situated in Jefferson County, Arkansas, being more particularly bounded and described as follows:

Real Property Tax Parcel No. 001-03633-000 (40 acres)

The Northwest Quarter of the Southeast Quarter of Section 13, Township 4 South, Range 10 West of the 5th P. M. containing 40 acres more or less

Real Property Tax Parcel No. 001-03634-000 (69.01 acres)

The South Half of the Southeast Quarter of Section 13, Township 4 South, Range 10 West of the 5th PM; LESS AND EXCEPT BEGINNING 50 FEET NORTH & 302 T E OF SOUTHWEST CORNER SOUTHEAST 1/4 TH N 63 DEGREES 30 MINS W 115.3 FEET N 44 DEGREES 15 MINS W 102 FEET N 5 DEGREES W 168 FEET S 78 DEGREES 45 MINS E 239 FEET S 10 DEGREES 45 MINS W 249 FEET TO THE BEGINNING, AND EXCEPT COMMENCING SOUTHWEST CORNER SOUTHEAST 1/4 THENCE E 302 FEET N 50 FEET N 10 DEGREES 45 MINS E 299 FEET FOR THE POINT OF BEGINNING, THENCE N 78 DEGREES 45 MINS W 239 FEET N 5 DEGREES W 145 FEET S 78 DEGREES 45 MINS E 284 FEET S 10 DEGREES 45 MINS W 200 FEET TO THE BEGINNING & ALSO EXCEPT BEGINNING AT THE SOUTHWEST CORNER SOUTHEAST 1/4 THENCE E 302 FEET NE'LY ALONG THE CENTERLINE OF COUNTY ROAD 600 FEET FOR THE POINT OF BEGINNING, THENCE W 312 FEET N 280 FEET E 361 FEET TO THE CENTERLINE OF COUNTY ROAD, THENCE SOUTHWESTERLY ALONG SAID CENTERLINE 280 FEET TO THE POINT OF BEGINNING, AND ALSO EXCEPT COMMENCING AT THE SOUTHWEST CORNER SOUTHEAST 1/2 THENCE E 302 FEET TO THE CENTERLINE OF THE COUNTY ROAD, THENCE N 10 DEGREES 30 MINS E ALONG SAID CENTERLINE 960 FEET FOR THE POINT OF BEGINNING, THENCE W 450 FEET TO THE CENTERLINE OF THE MAIN CANAL THENCE N 1 DEG E ALONG SAID CANAL 200 FEET THENCE NORTHEASTERLY ALONG THE CENTERLINE OF DRAINAGE DITCH 530 FEET S 56 DEGREES E 92 FEET TO THE CENTERLINE OF COUNTY ROAD THENCE SOUTHWESTERLY ALONG SAID CENTERLINE 160 FEET S 5 DEGREES 30 MINS W 290 FEET TO THE POINT OF BEGINNING, AND ALSO EXCEPT BEGINNING 315.2 FEET E OF SOUTHWEST CORNER SOUTHEAST 1/4 THENCE N 08 DEGREES 07 MINS E 300 FEET E 460.43 FEET S 08 DEGREES 07 MINS W 300 FEET W 460.43 FEET TO THE POINT OF BEGINNING, CONTAINING 69.01 ACRES, MORE OR LESS

(In the event of inaccuracies or insufficiencies in the foregoing legal description, Lessee may record an amendment of this Memorandum to correct the inaccuracies or insufficiencies)